

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 12319 of 2016

Md. Mahirul Islam alias Thandu
.....Convict-appellant.

-Versus-
The State
.....Respondent.

None appears
.....For the appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.
.... For the respondent.

Heard on 10.01.2024 and
Judgment on 15.01.2024

Sheikh Abdul Awal, J:

This Criminal Appeal at the instance of convict appellant, Md. Mahirul Islam alias Thandu is directed against the judgment and order of conviction and sentence dated 23.11.2016 passed by the learned Additional Sessions Judge, Meherpur in Sessions Case No. 127 of 2015 arising out of G.R No. 49 of 2015 corresponding to Gangni Police Station Case No. 20 dated 22.02.2015 convicting the accused-appellant under

table 1(Ka) of section 19(1) of the Madak Drobbya Niyontron Ain, 1990 and sentencing him thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 1,000/- (one thousand) in default to suffer R.I. for 01 (one) month more.

The prosecution case, in brief, is that one, Shushanto Paul, Sub Inspector, Gangni Police Station, Meherpur as informant on 22.02.2015 at about 19:15 hours lodged an Ejahar with Gangni Police Station against the accused-appellant stating, inter-alia, that on the basis of a secret information the informant along with a contingent of police force rushed in-front of Chatiyan Modhopara Primary School under Gangi police station and found that the accused Thandu is dealing with drug business and then apprehended the accused-appellant and on search recovered 3 grams of heroin which valued at Taka 3,000/- and thereafter, the informant party seized those heroin by preparing seizure list in presence of the witnesses.

Upon the aforesaid First Information Report, Gangni Police Station Case No. 20 dated 22.02.2015 under table 1(ka) of section 19(1) of the Madok Drabya Niyantran Ain, 1990 was started against the convict-appellant.

One, Md. Abdul Jalil Matubbor, Sub Inspector of police investigated the case, who during investigation examined the witnesses under section 161 of the Code of Criminal Procedure and obtained chemical examination report and after completion of investigation submitted charge sheet against the accused-appellant, vide charge sheet No. 112 dated 31.03.2015 under table 1(ka) of section 19(1) of the Madok Drabya Niyantran Ain, 1990.

Thereafter, the case record was sent to the Court of learned Sessions Judge, Meherpur, wherein it was registered as Sessions Case No. 127 of 2015. Ultimately, the case was transmitted to the Court of the learned Additional Sessions Judge, Meherpur for disposal, wherein the accused-appellant was put on trial to answer a charge under table 1(ka) of section 19(1), of the Madok Drabya Niyantran Ain, 1990 in which the accused-appellant pleaded not guilty and prayed to be tried stating that he has been falsely implicated in the case.

At the trial the prosecution side examined in all 06(six) witnesses to prove its case.

On conclusion of trial, the learned Additional Sessions Judge, Meherpur by the impugned judgment and order dated 23.11.2016 found the accused-appellant guilty under table 1(Ka), section 19(1) of the Drobbya

Niyontron Ain, 1990 and sentenced him thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 1,000/- (one thousand) in default to suffer rigorous imprisonment for 01(one) month more.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 23.11.2016, the accused-appellant preferred this criminal appeal.

No one found present to press the appeal on repeated calls despite of fact that this criminal appeal has been appearing in the list for hearing with the name of the learned Advocate since long.

In view of the fact that this petty old case has been dragging before this Court for near about 8 years arising out of 2 years sentence, I am inclined to dispose of it on merit on the basis of the evidence and materials on record.

Ms. Kohenoor Akter, the learned Assistant Attorney-General, appearing on behalf of the State-Respondent supports the impugned judgment and order of conviction and sentence dated 23.11.2016, which was according to her just, correct and proper.

Having heard the learned Assistant Attorney General, perused the memo of appeal, first information report, charge sheet, deposition of witnesses and other materials on record including the impugned judgment and order of conviction.

On scrutiny of the record, it appears that the informant (PW-1) on the basis of a secret information he along with a contingent of police force rushed to the place of occurrence and apprehended the accused-appellant and on search, recovered 3 grams of heroin which valued at Taka 3,000/- and thereafter, the informant party seized those heroin by preparing seizure list in presence of the witnesses. It further appears that PW-5, Md. Abdul Jalil Matubbor, Sub Inspector investigated the case and during investigation he examined the witnesses under section 161 of the Code of Criminal Procedure and submitted charge sheet against appellant.

At the trial the prosecution to prove its case examined in all 06(six) witnesses out of which PW-1, PW-2 and PW-5 are police witnesses who in their respective evidence deposed the prosecution case in details. PW-3, seizure list witness was tendered by the prosecution. PW-4, is also seizure list witness, who in his deposition stated that- “আসামী ঠাডুর লুপ্তির কোমড়ে গোছানো

অবস্থায় ৩ গ্রাম হিরোইন পাইয়াছে দেখিয়াছি।” PW-6 stated in his deposition that- “আমি সাক্ষ্য দিচ্ছি যে আসামী ঠাডুর কাছে হিরোইন পাওয়অর কথা পুলিশ বলেছে। তাহা আমি দেখি নাই।”

From the above quoted evidence, it appears that during trial the prosecution witnesses proved that 3 grams heroin was recovered from the possession of the accused appellant. It further appears that the alleged seized heroin was examined by the Chemical Examiner, who submitted his report stating that on examination he found the existence of heroin in the sample of heroin. In this case no anomaly was found in cross-examination of the PWs.

It is found that, the trial Court below in the facts and circumstances of the case on due consideration of the entire evidence and materials on record found the accused-appellant guilty under table 1(Ka) of section 19(1) of the Drobbya Niyontron Ain, 1990 and sentenced him thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine of Taka 1,000/- (one thousand) in default to suffer R.I. for 01 (one) month more. In view of the attending facts and circumstances of the case and the evidence on record, I find no reason to disbelieve the evidence of

police witnesses whatsoever. I find no flaw in the reasonings of the trial Court.

However, considering the law, facts and circumstances of the case as discussed above, particularly the fact that only 3 grams of heroin was recovered which valued at Taka 3,000/- and the convict-appellant has already been suffered his sentence to some extent and faced the agony of the protracted prosecution and also suffered mental harassment for a long period, I think that, the ends of justice, will be met in the facts and circumstances of the case if the sentence of fine is maintained and the substantive sentence is reduced to the period already undergone.

Learned Assistant Attorney General has, of course, been able to defend this case on merits but practically has nothing to say insofar as reduction of sentence imposed upon the appellant is concerned.

The appeal is, consequently, dismissed with modification of sentence that the sentence of imprisonment for the offence is reduced to the period of sentence already undergone. Sentence of fine is, however, maintained. The accused-appellant may be discharged from his bail bonds, if he deposits the fine.

Send down the lower Court records at once.